



Regulations on Operating the New-Type Securities Market

Formulated on September 22, 2025

Amended on:

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Regulations on Operating the New-Type Securities Market

Chapter I. General Provisions

§1. Purpose

The purpose of this Regulation is to stipulate matters necessary for members, listing review, management of listed securities, reporting and disclosure of new-type securities listed corporations, and trading of listed securities in the new-type securities market, which is established and operated by the Korea Exchange after receiving the designation as an innovative financial service pursuant to the Special Act on Support for Financial Innovation.

§2. Opening of Market

(1) The Korea Exchange (hereinafter referred to as the “Exchange”) shall establish the market to trade non-monetary trust beneficiary certificates and investment contract securities (hereinafter referred to as the “new-type securities market”) within the KOSPI Market established pursuant to Article 386 of the Financial Investment Services and Capital Markets Act (hereinafter referred to as the “Capital Markets Act”).

(2) The new-type securities market shall be classified as follows:

1. Non-monetary trust beneficiary certificates market; and
2. Investment contract securities market.

(3) The Exchange shall operate the new-type securities market for the period (hereinafter referred to as the “designation period”) during which the market is designated as an innovative financial service pursuant to the Special Act on Support for Financial Innovation.

(4) The Exchange may terminate the operation of the new-type securities market upon expiration of the designation period. In this case, the Exchange shall provide prior notice of the termination of market operations and take necessary measures, such as delisting, etc.

§3. Definitions

(1) The terms used in this Regulation shall be defined as follows:

1. “Non-monetary trust beneficiary certificates” refers to beneficiary certificates that indicate the beneficial interest of a trust other than a monetary trust or investment trust;
2. “New-type securities” refers to non-monetary trust beneficiary certificates and investment contract securities;

3. "New-type securities listed corporation" refers to a company that lists new-type securities on the new-type securities market; and
4. "Small investor" refers to a person who owns less than 1/100 of the total number of issued securities of the relevant issue.

(2) The terms, other than those specified in paragraph (1), used in this Regulation shall be in accordance with the relevant laws and regulations, the "KOSPI Market Listing Regulations" (hereinafter referred to as the "Listing Regulations"), the "KOSPI Market Business Regulations" (hereinafter referred to as the "Business Regulations"), and the "Membership Regulations."

§4. Accounting Standards and Financial Statement Application Standards

(1) The audit report applied to this Regulation shall refer to the audit report [including the audit report on the consolidated financial statement, in the case of a company(hereinafter referred to as "the company subject to the preparation of consolidated financial statement") owning a consolidated subsidiary stated in Article 3(1) of the Enforcement Decree of Act on External Audit of Corporations; the same hereinafter] prepared after the auditor, stated in Article 2, Subparagraph 7(a) of the Act on External Audit of Corporations (hereinafter referred to as "the auditor"), conducted an audit of the financial statement (referring to the financial statement stated in Article 2, Subparagraph 2 of the Act on External Audit of Corporations; the same hereinafter) prepared in accordance with the accounting standards specified in Article 5(1) of the Act on External Audit of Corporations. In such cases, where the concerned auditor including the accountant in charge has interests in the new-type securities listed corporation through the ownership of stocks, equity-related bonds, or the acquisition of stock options of such corporation, etc., the audit report prepared by the auditor concerned shall be excluded.

(2) Unless otherwise specified in this Regulation, the financial details applicable to this Regulation shall be based on the financial statements in which the auditor's opinion is "unqualified" or "qualified" due to uncertainty over the company's ability to continue as a going concern. Provided that, in cases where the auditor's opinion is qualified due to a violation of domestic accounting standards, the adjusted financial details that reflect such violation shall be applied.

Chapter II. Listing of New-Type Securities

§5. General Operation of Listing of Securities

(1) With respect to listing by application, prohibition of partial listings, delisting without application for delisting, trading before delisting, documents for listing, effective date of listing agreement, obligation of prior consultation, etc. of new-type securities, [§4 (excluding the latter part of paragraph (3)), [§6], [§8] through [§10], [§16(2)] and [§20] of the Listing Regulations shall apply *mutatis mutandis*. In this case, "seven (7) days" in [§9(2)] of the Listing Regulations shall be deemed as "three (3) days".

(2) The Exchange may establish the Enforcement Rules regarding the procedures and methods, application of review requirements, etc. for conducting preliminary listing review or listing review based on an application by a listing applicant.

(3) A listing applicant (excluding applicants who already listed the same securities on the new-type securities market) who intends to list new-type securities shall enter into a listing agreement with the Exchange. In such cases, the listing applicant shall submit the listing agreement in the format prescribed by the Enforcement Rules.

(4) A new-type securities listed corporation may apply for delisting from the Exchange if early liquidation (referring to the repayment or redemption of the underlying assets or rights through sale before maturity) is confirmed prior to maturity for each type of listed issues. In such cases, the new-type securities-listed corporation shall submit a delisting application form and the accompanying documents as prescribed by the Enforcement Rules to the Exchange. The Exchange shall determine whether to delist based on the content and compliance with procedures contained in the securities registration statement.

(5) An applicant for the initial listing of new-type securities may appoint a listing sponsor for the purpose of applying for such listing. In this case, [§12(2) through (4)] of the Listing Regulations shall apply *mutatis mutandis* to the duties and qualifications of the listing sponsor.

(6) With respect to the disposal of securities under mandatory holdings, etc. and the notification of irregular securities certificates, [§159] and [§161] of the Listing Regulations and the Enforcement Decree of the same Regulations shall apply *mutatis mutandis*.

§6. Appointment of Designated Advisor

(1) An applicant for initial listing of investment contract securities (including listed companies; the same hereinafter from [§6] through [§8]) shall appoint a person (hereinafter referred to as the “designated advisor”) who performs the following tasks:

1. Submission of a comprehensive opinion on the listing eligibility of investment contract securities;
2. Recommendation and advice on initial listing procedures, etc. for initial listing applicants of investment contract securities, and handling of affairs related to the initial listing;
3. Regular and continuous advice for investment contract securities listed corporations on compliance with financial laws;
4. Disclosure and reporting on behalf of investment contract securities-listed corporations;
5. Recording and retention of task-related contents as a designated advisor; and
6. Other duties that the Exchange deems necessary in performing the tasks of a designated advisor.

(2) Notwithstanding paragraph 1, in the case where an applicant for initial listing of investment

contract securities is recognized by the Exchange as a financial investment business operator licensed for investment trading or collective investment business under the Capital Markets Act, a designated advisor may not be appointed.

(3) When an applicant for initial listing of investment contract securities and a designated advisor enter into a contract for the appointment of a designated advisor pursuant to paragraph (1) (hereinafter referred to as the "designated advisor appointment agreement" in this Article), the necessary rights and obligations between the company and the designated advisor shall be established to ensure compliance with these Regulations. In this case, the designated advisor appointment agreement shall include the matters stipulated in the Enforcement Rules.

(4) The contract period for the appointment of a designated advisor shall be at least one (1) year from the listing date of each issue (if the designated advisor is replaced due to early termination of contract, the contract period is added together), and if the designated advisor changes or the contents of the appointment contract change, it shall be reported in writing to the Exchange without delay.

(5) An applicant for initial listing of investment contract securities shall make the notification, submission of documents, reporting and disclosure, etc. to the Exchange in accordance with these Regulations through a designated advisor, and the notification by the Exchange to the applicant for initial listing of investment contract securities may also be replaced with a notification to the designated advisor. Provided that, if a designated advisor is not appointed pursuant to paragraph (2) or the appointment agreement for a designated advisor is terminated, the investment contract securities listed corporation shall directly make the reports and disclosures.

(6) Other necessary matters concerning the appointment, etc. of the designated advisor may be prescribed by the Enforcement Rules.

§7. Requirements for Designated Advisors

Matters concerning the qualifications, duties, and reporting obligations of designated advisors shall be governed by applying [§6], [§8] and [§9] of the KONEX Market Listing Regulations *mutatis mutandis*. In this case, "[§3] of the Membership Regulations of the Exchange" in [§6(1)2] of the same Regulations shall be deemed as "[§3(1)1] of the Membership Regulations of the Exchange" and the "responsible company" in [§8(2)] of the same Regulations shall be deemed as "the company that has entered into the designated advisory agreement."

§8. Measures Against Designated Advisors

(1) In the case where a designated advisor falls under any of the following, the Exchange may suspend the advisor's qualifications for a certain period of time (referring to an action restricting the advisor from entering into a new designated advisor appointment agreement with an applicant for initial listing of investment contract securities). In such cases, the suspension period and other necessary matters shall be prescribed by the Enforcement Rules:

1. If a security listed on this market after entering into a contract with a designated advisor

is delisted pursuant to [§15] for reasons arising within one (1) year of the listing date; or

2. If the Exchange recognizes that the replacement of a designated advisor is necessary for investor protection and the public interest, such as due to significant neglect of duties by the designated advisor.

(2) If a reason for action under paragraph (1) arises, the Exchange shall notify the designated advisor.

(3) A designated advisor may submit an opinion to the Exchange within seven (7) days from the date of notification pursuant to paragraph (2), and the Exchange shall decide whether to take action against the designated advisor within one (1) month from the deadline for submission of opinions.

§9. Preliminary Listing Review, etc.

(1) An applicant for initial listing of new-type securities shall submit an application for preliminary listing review and accompanying documents to the Exchange as prescribed by the Enforcement Rules and undergo a preliminary listing review before applying for an initial listing in accordance with [§11].

(2) The Exchange shall examine the application for preliminary listing review and accompanying documents pursuant to paragraphs 2 and 3 of [§11] that an applicant for initial listing of new-type securities submits in accordance with paragraph (1) for preliminary listing review.

(3) The Exchange shall notify the initial listing applicant and relevant authorities of the results of the preliminary listing review in writing within thirty (30) days (based on business days) from the date of receipt of the application for preliminary listing review.

(4) Notwithstanding paragraph (3), where it is necessary to correct or supplement the application for preliminary listing review and accompanying documents, or where other unavoidable reasons arise, the Exchange may postpone the preliminary listing review and notification of results. In such cases, the Exchange shall notify the relevant applicant for initial listing of the reasons and estimated processing time in writing.

(5) In the case where, after having notified the result of the preliminary listing review pursuant to paragraph (3), any of the following incidents occurs for an initial listing applicant, and it is recognized that the incident has a significant impact on the result of the preliminary listing review, the Exchange may refuse to recognize the validity of the relevant results of the preliminary listing review:

1. Where a material fact to business management has arisen;
2. Where important matters on investor protection being falsely stated in or omitted from the application for preliminary listing review have been identified; or
3. Where an application for initial listing of new-type securities has not been submitted

within six (6) months from the date of having been notified of the result of the preliminary listing review. Provided that if the applicant for initial listing requests an extension of the submission deadline due to unavoidable reasons, such as a sudden change in market conditions, and the Exchange approves the request, the submission deadline may be extended once for up to six (6) months.

(6) Where the Exchange decides to refuse to recognize the validity of the results of the preliminary listing review pursuant to paragraph (5), it shall announce such fact and notify the initial listing applicant and relevant authorities.

(7) An applicant for initial listing of new-type securities shall submit the documents prescribed by Enforcement Rules to the Exchange by the day before the listing date of the new-type securities after applying for preliminary listing review.

(8) Where an applicant for initial listing submits a written statement to the Exchange stating the reasons for withdrawal of the application for preliminary listing review, the Exchange shall terminate the preliminary listing review.

§10. Mandatory Holdings

(1) Where an applicant for initial listing of new-type securities and registered executives of the relevant company submit an application for initial listing under [§11(1)], they shall hold the new-type securities they own for at least three (3) months from the listing date.

(2) Notwithstanding paragraph (1), an applicant for initial listing of new-type securities shall hold the quantity prescribed by the Enforcement Rules for each issue of new-type securities from the date of initial listing until maturity or delisting of the relevant securities.

(3) Documents to be submitted and the submission period in relation to the mandatory holdings pursuant to paragraphs (1) and (2) shall be prescribed by the Enforcement Rules.

§11. Initial Listing

(1) Where an applicant for initial listing of new-type securities intends to initially list new-type securities after passing the preliminary listing review conducted by the Exchange, the applicant shall submit to the Exchange the application and accompanying documents prescribed by the Enforcement Rules within six (6) months (if the submission deadline is extended due to the proviso to [§9(5)], the deadline shall be the date of extension) from the date of having received the results of the preliminary listing review.

(2) To initially list new-type securities, all of the following requirements shall be met. Provided that the requirements of subparagraphs 1(c) and 1(d) may be determined based on the recently submitted semi-annual financial statements:

1. Requirements for initial listing applicants: All of the following requirements shall be met:
 - (a) The applicant shall be a domestic corporation that is a joint stock company under the Commercial Act;

- (b) The applicant shall be an issuer of new-type securities. Provided that in the case of non-monetary trust beneficiary certificates, it may be a corporation that has entered into a listing agreement with the Exchange as a party that has entrusted assets to the issuer;
 - (c) Equity capital shall be at least KRW 2 billion. In this case, the equity capital of a corporation subject to the preparation of consolidated financial statements (for companies other than holding companies, only the fiscal year which is applicable to Korean International Financial Reporting Standards is applied) shall be based on the total equity in the consolidated financial statements, excluding non-controlling interests;
 - (d) The applicant shall not be in a state of capital impairment. In this case, the corporation subject to the preparation of consolidated financial statements shall be based on the capital and total equity (excluding non-controlling interests) in the consolidated financial statements;
 - (e) The auditor's audit opinion on the financial statements for the latest fiscal year (including the audit opinion on the consolidated financial statements for corporations subject to the preparation of consolidated financial statements) shall be "unqualified". In this case, corporations subject to the preparation of consolidated financial statements (excluding holding companies) shall apply consolidated financial statements only for fiscal years in which Korean International Financial Reporting Standards were applied.
 - (f) The applicant shall meet the mandatory holding requirements under [§10]; and
 - (g) In addition, the eligibility of the applicant shall be recognized in relation to performing the tasks of issuance, listing, and reporting of new-type securities.
2. Requirements for the issue to be listed: All of the following requirements shall be met. Provided that, if the issuing price for items (g) or (h) is not available, it may be substituted with an appraised value separately approved by the Exchange:
- (a) A product disclosure statement (a document explaining matters separately requested by the Exchange, such as the structure of the securities, profit distribution, early termination, maturity, etc.) shall be submitted;
 - (b) In the case of investment contract securities, a designated advisor shall be appointed in accordance with [§6];
 - (c) In the case of investment contract securities, the requirements for bankruptcy remoteness (referring to matters related to investor protection devices described in the securities registration statement and investment contracts, etc.) shall be met;
 - (d) Electronic registration (excluding electronic registration using a distributed ledger; the same hereinafter) shall have been completed;

- (e) The securities shall have been issued through a public offering or secondary offering;
 - (f) The total number of listed securities must be 100,000 shares or 100,000 units or more;
 - (g) The base market capitalization (referring to the amount calculated by multiplying the number of shares to be listed by the issuing price at the time of the latest public offering and/or secondary offering; the same hereinafter) must be at least KRW 3 billion;
 - (h) The issuing price per share or unit must be KRW 5,000 or more;
 - (i) As of the date of application for initial listing, small investors must own at least 25% of the total number of listed securities; and
 - (j) There must not be restrictions on the transfer of securities.
- (3) The Exchange shall comprehensively consider the following matters to determine whether it is appropriate to list new-type securities that meet the requirements of paragraph (2):
- (a) Matters related to the preparation of a list of beneficiaries and investors, maturity, early termination, etc., shall be deemed appropriate for the product;
 - (b) The transparency and fairness of the product shall be recognized in light of the product disclosure statement;
 - (c) The securities listed by an initial listing applicant within the past two (2) years shall not have been designated as an issue subject to delisting pursuant to [§15(1)1]; and
 - (d) In addition, the listing of new-type securities shall be deemed not detrimental to the public interest and investor protection.
- (4) The Exchange shall, without delay, notify the applicant for initial listing of whether or not the initial listing has been approved from the date of application for initial listing pursuant to paragraph (1).
- (5) Where, as a result of the review pursuant to paragraphs (2) and (3), it is determined that the listing of the relevant new-type securities is not appropriate for the public interest and investor protection, the Exchange may refuse to list them.

§12. Supplementary Listing

- (1) Where a new-type securities listed corporation intends to issue and list new securities of an issue with the same rights as an already listed new-type securities, it shall submit an application for supplementary listing and the accompanying documents prescribed by the Enforcement Rules to the Exchange.
- (2) Securities to be listed additionally pursuant to paragraph (1) shall satisfy the requirements of [§11(2)2(d) and (j)] as of the date of application for supplementary listing.

(3) The Exchange may reject a supplementary listing if it determines that the issuance of securities to be listed additionally is not in accordance with the methods or procedures described in the securities registration statement or product disclosure statement.

(4) Provisions of [§9 (excluding paragraph (3))], [§10(2)] and [§11(1), (4) and (5)] shall apply to preliminary review, mandatory holding, and listing application for supplementary listing.

§13. Listing Change

(1) Where a new-type securities listed corporation intends to apply for listing change due to a change in the name of the relevant securities, spin-off, merger, or business transfer with another corporation, etc., it shall submit to the Exchange an application for listing change and accompanying documents prescribed by the Enforcement Rules.

(2) The application for listing change under paragraph (1) shall be made without delay after the reason for the relevant change takes effect.

§14. Designation of Administrative Issues

(1) In any of the following cases, the Exchange shall designate the relevant new-type securities (referring to all securities listed by the relevant listed corporation, in cases where subparagraphs 1, 3 or 4 apply) as an administrative issue:

1. If a new-type securities listed corporation falls under any of the followings:

(a) No submission of financial statements, etc.: Where the financial statements, etc. noted in [§21] are not submitted by the deadline specified in the same Article.

(b) Inadequate audit opinion: Where the auditor's audit opinion or review opinion on the financial statements falls under any of the following. In this case, if the corporation is subject to the preparation of consolidated financial statements, the audit opinion or review opinion on the consolidated financial statements is included:

(i) The audit opinion on the latest fiscal year's financial statements is "qualified"; or

(ii) The review opinion on the latest semi-annual financial statements is "adverse" or a disclaimer of opinion.

(c) Capital Impairment: Where 50% or more of the corporation's capital has been impaired as of the end of the latest fiscal year. In this case, for a corporation subject to the preparation of consolidated financial statements, the calculation shall be based on the capital and total equity (excluding non-controlling interests) in the consolidated financial statements.

(d) Merger, etc.: Where a merger, spin-off, merger after spin-off, or business transfer is being decided on.

2. Where an issue of listed securities falls under any of the following. Provided that items (a) and (b) shall apply only to investment contract securities:

(a) Failure to appoint a designated advisor: Where a reason for termination under the designated advisor appointment agreement arises within one (1) year of listing. Provided that this does not apply in cases where ten (10) months or more have passed since listing, and the Exchange recognizes that the reason for termination is unavoidable;

(b) Failure to meet the requirements for bankruptcy remoteness: Where a reason arises that makes it impossible to fulfill the requirements for bankruptcy remoteness stated in the securities registration statement, etc.;

(c) Inadequate number of securities: Where the total number of listed securities is less than 100,000 shares or 100,000 units;

(d) Early termination, etc.: Where early termination, etc. is confirmed pursuant to [§5(4)] and delisting is requested.

3. Where the matters requested by the Exchange pursuant to [§24(1)] are not fulfilled within the deadline; or

4. Other cases where the Exchange deems that designation as an administrative issue is necessary for the sake of public interest and investor protection.

(2) If the Exchange confirms that the reasons for the designation of administrative issue under each subparagraph of paragraph (1) have been resolved, it shall remove the designation of the administrative issue.

(3) The Exchange shall stipulate the application method of the reasons for designating an administrative issue, the timing of designation and removal of an administrative issue, and other necessary matters in the Enforcement Rules.

§15. Delisting

(1) Where new-type securities fall under any of the following subparagraphs, the Exchange shall delist the relevant new-type securities (Where item 1 or 4 applies, it shall refer to all issues listed by the relevant listed corporation). In such case, the Exchange may grant the new-type securities listed corporation a grace period of up to one (1) year to resolve the reasons for delisting (excluding the reasons for delisting under item 3) or to apply for delisting upon request:

1. Where a new-type securities listed corporation falls under any of the following:

(a) No submission of financial statements, etc.: In any of the following cases with regard to financial statements;

(i) A new-type securities listed corporation is designated as an administrative issue

pursuant to [§14(1)1] due to non-submission of financial statements, etc. for the fiscal year and fails to submit the relevant financial statements, etc. within ten (10) days from the day following the submission deadline stipulated in [§21(2)]; or

- (ii) A new-type securities listed corporation is designated as an administrative issue pursuant to [§14(1)1(a)] due to non-submission of semi-annual reports, etc., and fails to submit the semi-annual report, etc. for the next fiscal year by the submission deadline stipulated in [§21(2)].
- (b) Inadequate audit opinion: Where the auditor's audit opinion on the financial statements falls under any of the following. In this case, if the corporation is subject to the preparation of consolidated financial statements, the audit opinion on the consolidated financial statements shall be included:
 - (i) The audit opinion on the latest fiscal year's financial statements is "adverse" or a disclaimer of opinion; or
 - (ii) A new-type securities listed corporation is designated as an administrative issue pursuant to [§14(1)1(b)1] with an audit opinion of "qualified", and the auditor's audit opinion on the financial statements is "qualified" even in the latest fiscal year.
- (c) Capital Impairment: Where the capital is fully impaired as of the end of the latest fiscal year. In this case, the corporation subject to the preparation of consolidated financial statements applies the relevant requirements based on the capital and total capital (excluding non-controlling interests) in the consolidated financial statements.
- (d) Dissolution: Where a reason for dissolution according to the law (excluding a reason for dissolution due to a merger, spin-off, or merger after spin-off) occurs;
- (e) Final dishonor or suspension of bank transactions: Where a bill or check issued by a new-type securities listed corporation is finally dishonored or its banking transactions are suspended;
- (f) Commencement of rehabilitation procedures or bankruptcy: Where a new-type securities listed corporation falls under any of the following cases in relation to an application for initiation of rehabilitation proceedings or an application for bankruptcy:
 - (i) Where a new-type securities listed corporation files an application for the commencement of rehabilitation procedures or bankruptcy in accordance with the Debtor Rehabilitation and Bankruptcy Act; or
 - (ii) Where, after a person other than a new-type securities listed corporation files an application for the commencement of rehabilitation procedures or bankruptcy against the relevant listed corporation in accordance with the Debtor Rehabilitation and Bankruptcy Act, the reason for the application is not resolved within one (1) month or a court decides to commence rehabilitation procedures or declares bankruptcy.
- (g) Suspension of business, etc.: Where the business of a new-type securities listed

corporation is suspended or it is impossible to perform new-type securities-related tasks due to administrative dispositions, etc.

- (h) Ineligibility of applicant for listing change: Where, when a new-type securities listed corporation decides to conduct a merger after spin-off with another company or to transfer related business and applies for listing change, the applicant for listing change falls under any of the items from (a) to (g).

2. Where an issue of listed securities falls under any of the following:

- (a) Failure to resolve the reason for designation as an administrative issue: Where, after an issue has been designated as an administrative issue for any of the reasons listed in [§14(1)2], the reason has not been resolved within the period specified below:
 - (i) Failure to appoint a designated advisor: Where a new designated advisor is not appointed within three (3) months from the date of designation as an administrative issue. Even if a new advisor is appointed, if the designated advisor appointment period stipulated in Article 6, Paragraph 4 is not met, it shall be deemed that the reasons for delisting have not been resolved;
 - (ii) Failure to meet the requirements for bankruptcy remoteness: Where the requirements for bankruptcy remoteness are not met within three (3) months from the date of designation as an administrative issue; or
 - (iii) Inadequate number of listed securities: Where the reason for designation as an administrative issue is not resolved within six (6) months from the date of designation as an administrative issue.
- (b) Restrictions on transfer of securities: Where there is a decision restricting the transfer of securities; or
- (c) Termination of trust, etc.: Where, for non-monetary trust beneficiary certificates, the trust is terminated or the trust company becomes insolvent or bankrupt.

3. Where a request for delisting is made to the Exchange as the final trading day noted in [§16] arrives or early termination, etc. is confirmed pursuant to [§5(3)]; or

4. Other cases where the Exchange recognizes that delisting is necessary for the public interest and investor protection.

(2) In the case of delisting pursuant to paragraph (1) (excluding the case of paragraph (1)3), the Exchange may permit trading before delisting pursuant to [§9] of the Listing Regulations.

§16. Last Trading Day

(1) The last trading day for new-type securities with a maturity date shall be four trading days prior to the maturity date.

(2) Notwithstanding paragraph (1), the Exchange may, if necessary for market management, set a different last trading day.

§17. Suspension of Trading

(1) In cases where a listed corporation or a listed security falls under any of the following subparagraphs, the Exchange may suspend the trading of the relevant security:

1. Where a grace period is in effect pursuant to the latter part of the main sentence of [§15(1)];
2. Where a cause for delisting under [§15(1)1 and 2] occurs;
3. Where the Exchange requests an explanation from a listed corporation pursuant to [§23];
4. Where electronic registration is required for the initial registration, change, or cancellation of the listed securities;
5. Where a listed company applies for delisting due to early termination, etc.; or
6. Other cases where the Exchange deems it necessary for the public interest, investor protection, and market management.

(2) Notwithstanding paragraph (1), in cases where the Exchange recognizes that the relevant listed securities are already under trading suspension or that trading suspension is not necessary for market management purposes, it may not take action of the suspension of trading of the relevant securities.

(3) Matters necessary for the suspension and resumption of trading pursuant to paragraph (1) shall be prescribed by the Enforcement Rules.

§18. Public Announcement on Administrative Issues and Delisting Issues

(1) In the event of designation as an administrative issue or the removal of such designation, the Exchange shall announce such fact through electronic delivery media.

(2) Where a new-type securities listed corporation falls under the causes for delisting noted in [§15], the Exchange shall notify the relevant corporation in writing of such fact, the method and procedure for delisting, and other necessary matters without delay.

(3) Where the Exchange delists new-type securities, the Exchange may announce the fact that the relevant listed securities have been delisted.

(4) Where a new-type securities listed corporation has not fulfilled its obligations under these Regulations or has not submitted the relevant documents, the Exchange may announce such fact.

Chapter III. Reporting and Disclosure of New Types Securities Listed Corporations

§19. General Operation of Reporting and Disclosure

(1) With regard to the faithful performance and responsibility of reporting and disclosure obligations of new-type securities listed corporations and matters to be reported to the Exchange, [§4], [§6(1)] and Part 3 of the “KOSPI Market Disclosure Regulations” (hereinafter referred to as the “Disclosure Regulations”) shall apply *mutandis mutatis*.

(2) Where a new-type securities listed corporation makes a report pursuant to [§6(1)] of the Disclosure Regulations, the Exchange shall, without delay, disclose the main contents of the report through disclosure media pursuant to [§4] the Enforcement Rules of the Disclosure Regulations (hereinafter referred to as “disclosure media”) after going through a verification process to determine whether the report may cause confusion in investment decisions and whether supporting documents are attached.

§20. Appointment of Disclosure Officer, etc.

(1) A new-type securities listed corporation shall designate one (1) disclosure officer (a full-time employee of the relevant listed corporation who participates in the decision-making of the board of directors or a person equivalent to such officer) and one (1) disclosure employee to perform the reporting and disclosure duties prescribed in these Regulations. Provided that, if an investment contract securities listed corporation within one year of its listing date has appointed a designated advisor, the designated advisor shall act on behalf of the relevant investment contract securities listed corporation in handling reporting and disclosure duties.

(2) Notwithstanding paragraph (1), where a new-type securities listed corporation falls under any of the following subparagraphs, it may designate a person (hereinafter referred to as a “disclosure agent”), who is recognized as having specialized knowledge of disclosure and meets the qualifications specified in the Enforcement Rules and who can represent the relevant listed corporation in all reporting and disclosure matters, and report and disclose in accordance with these regulations.

(a) Where less than three years have passed after the date of initial listing of the new-type securities; or

(b) Where a new-type securities listed corporation is a small and medium-sized enterprise (SME) as defined in Article 2 of the Framework Act on Small and Medium-sized Enterprises (SMEs).

(3) When a new-type securities listed corporation designates or changes a disclosure officer, disclosure manager (in cases where a designated advisor handles reporting and disclosure work on behalf of the corporation, this refers to the disclosure manager of the designated advisor; the same hereinafter), and disclosure agent (hereinafter referred to as “disclosure officer, etc.”), it shall notify the Exchange of such fact in writing without delay. In the case of a disclosure agent, it shall notify the Exchange of such fact by attaching a document proving that it has been

granted authority to represent the relevant listed corporation.

(4) Disclosure officers, etc. shall complete training on reporting and disclosure work separately conducted by the Exchange within three (3) months of the date of designation or change notification pursuant to paragraph (3). Provided that this does not apply where one (1) year has not elapsed since the completion of the relevant training.

(5) Where the Exchange confirms that a disclosure agent does not meet the qualifications stipulated in the Enforcement Rules or that disclosure officer, etc. has not completed the training within the deadline in violation of [§4], it may request the relevant listed corporation to replace the relevant disclosure officer, etc.

(6) Notwithstanding paragraph (1), where a corporation that has applied for the commencement of rehabilitation procedures (including simplified rehabilitation procedures; the same hereinafter) pursuant to the Debtor Rehabilitation and Bankruptcy Act or for which the commencement of rehabilitation proceedings has been decided, the administrator pursuant to Article 74 of the same Act or the preservation administrator pursuant to Article 85 of the same Act shall be deemed as the disclosure officer.

§21. Submission of Financial Statements, etc.

(1) Listed corporations shall submit to the Exchange the business report, etc. for the fiscal year as stipulated in the Enforcement Rules and a semi-annual report, etc. as stipulated in the Enforcement Rules.

(2) Listed corporations shall submit the business report, etc. for the fiscal year pursuant to paragraph (1) to the Exchange within ninety (90) days after the end of each fiscal year, and the semi-annual reports, etc. shall be submitted within forty five (45) days after the end of six (6) months from the start of each fiscal year.

§22. Reporting of Material Matters

Where any of the following reasons arise, a new-type securities listed corporation shall report the details to the Exchange by the deadline specified in the relevant subparagraphs:

1. Arrival of maturity of listed issue: Up to one (1) month prior to the maturity date of the new-type securities;
2. Occurrence of early termination of listed issue: On the day of occurrence;
3. Decision to voluntarily delist the relevant securities, such as confirmation of early termination: On the day of the decision;
4. Profit distribution of an issue: On the day of the decision. Provided that, where a large-scale profit distribution amount exceeds the price limit per security and requires the adjustment of base price, the reporting deadline shall be 10 trading days prior to the date specified in [§105] of the Business Regulations;

5. Occurrence of a cause that has a material impact on securities, such as the acquisition, disposal, loss or damage of assets subject to rights, or the execution, change or termination of a business contract: without delay; or
6. Other cases that, as a case that the Exchange deems it necessary for listing management, are stipulated in the Enforcement Rules: without delay.

§23. Request for Explanation for Rumors or News, etc.

(1) The Exchange may request an explanation from a new-type securities listed corporation to verify the facts of rumors or news regarding matters that fall under or are equivalent to reasons for delisting under [§15] and the relevant listed corporation shall comply with the request. Provided that, if the rumor or other information has already been reported or disclosed within one (1) month, the Exchange may not request an explanation.

(2) The Exchange shall request explanations from the CEO, disclosure officer, etc. of new-type securities listed corporations by phone, facsimile, or electronic document, and announce such fact of request for explanation and its contents through disclosure media. In such cases, if an explanation is requested by phone, the Exchange shall promptly submit the request in writing by facsimile or electronic document.

(3) If a new-type securities listed corporation reports and discloses (hereinafter referred to as the "interim disclosure") that it is in the decision-making process for the explanatory disclosure under paragraph (1), it shall make a follow-up report and disclosure regarding the final details or progress on the matter within one (1) month from the date of the interim disclosure. Provided that, if it is deemed practically difficult to make a follow-up report and disclosure regarding the final details or progress within one (1) month from the date of the interim disclosure, the Exchange may require the relevant listed corporation to do so within the deadline specified in the interim disclosure (referring to a deadline, within six (6) months, agreed upon with the Exchange).

(4) When making a report and disclosure of the interim disclosure, it shall include the detailed description of the relevant decision-making process.

§24. Measures Against Corporations Violating Reporting Obligations

(1) Where a new-type securities listed corporation intentionally or through gross negligence repeatedly violates the reporting obligations under [§21] and [§22] or fails to respond to requests for explanation under [§23], the Exchange may require each of the following to prevent recurrence:

1. Submission of an improvement plan;
2. Replacement of the disclosure officer, etc.; or

3. Appointment of a disclosure agent (for a period of not more than one (1) year).

(2) A new-type securities listed corporation shall submit an improvement plan to the Exchange within ten (10) trading days after receiving the request under paragraph (1). In this case, the Exchange may require the submission of a performance report within a deadline determined by the Exchange (it shall be a period of not more than six (6) months).

(3) If the Exchange deems it necessary, it may request the relevant listed corporation to correct or supplement the contents of the improvement plan and implementation report and submit them.

(4) The Exchange may announce the fact of the request pursuant to paragraph (1) and the improvement plan and implementation report submitted pursuant to paragraph (2) through disclosure media.

Chapter IV. Market Operation, Trading, Clearing and Settlement, etc.

§25. Application of Regulation

(1) Except as otherwise provided in these Regulation and Enforcement Rules, regulations applicable to the stock market and stocks, among the Business Regulations and the Securities Market Clearing and Settlement Business Regulations (hereinafter referred to as the “Clearing and Settlement Business Regulation”) (including the Enforcement Rules and related guidelines for each Regulations), shall apply to the new-type securities market and new-type securities. Provided that [§20-9] through [§20-11], [§28-2], [§30-2] through [§36], [§38-2] through [§41], [§79], [§80], [§106-2] and [§112] of the Business Regulation shall not apply to new-type securities.

(2) The new-type securities shall not fall under the category of substitute securities under [§88] of the Business Regulation.

§26. Exclusion of Off-hours Market

For new-type securities, there shall be no off-hours market other than the regular market.

§27. Type of Quotations and Quotation Receiving Hours

(1) A member shall submit only limit quotations for new-type securities.

(2) Orders shall be submitted from thirty (30) minutes prior to the start of trading hours in the regular market to the time of market closing (hereinafter referred to as “order receiving hours” and includes changed order receiving hours pursuant to the Business Regulations).

§28. Limits on Quotation Prices

(1) The quotation prices of new-type securities shall neither be higher than the price obtained by adding the price change limit (hereinafter referred to as “upper limit price”) to the base price (hereinafter referred to as the “base price”) determined by the Enforcement Rules nor lower than the price obtained by subtracting the price change limit from the base price (hereinafter referred to as “lower limit price”). In this case, if the Exchange recognizes that the upper or lower limit price is not appropriate, the upper or lower limit price may be determined differently by the Enforcement Rules.

(2) The price change limits noted in paragraph (1) shall be equal to the amount calculated by multiplying the base price by 0.3 (the amount less than the quotation price unit of the base price shall be discarded; the same hereinafter in this Article). Provided that it shall be the lowest price among the quotation price units when the relevant obtained amount is less than the lowest value of the quotation price unit.

(3) Notwithstanding paragraphs (1) and (2), in the case of issues to be delisted, there shall be no price restrictions, and in cases stipulated in the Enforcement Rules, the price change limit may be set differently.

§29. Quotation Quantity Units and Trading Quantity Units

The quotation quantity units and the trading quantity units in the new-type securities market shall be specified by the Enforcement Rules.

§30. Special Cases of Trade Execution of the New-Type Securities Market

(1) In addition to the price determination under [§23(1)1 through 5] of the Business Regulations, the price determination under [§17(3)] and paragraph (4) of this Article shall also be conducted by a call auction.

(2) The range of quotations (hereinafter referred to as “quotations participating in a call auction”) to be included in determining the prices under [§17(3)] and paragraph (4) of this Article shall be prescribed in the Enforcement Rules.

(3) The price determined by a call auction shall be the matched price (hereinafter referred to as the “matched price”) pursuant to [§23(4)] of the Business Regulations. In this case, if there are two (2) or more matched prices, [§23(5)] of the Business Regulations shall apply, but the special quotation price shall not apply. If the Exchange recognizes that application of [§23(5)] of the Business Regulations is inappropriate, the price determined by the Enforcement Rules shall apply.

(4) Where the provisional execution price determined by the quotation of new-type securities falls under any of the following subparagraphs, the Exchange may change the trade execution method of the relevant issue to the call auction under paragraph (1) or expand the quotation range participating in call auctions (hereinafter referred to as “change of trade execution method, etc.”).

1. Case of rising or falling by the rate specified in the Enforcement Rules or higher or lower based on the latest price as of the time of receipt of the relevant quotation during the trading hours of the regular session (excluding the time of deciding the opening price); or
 2. Case of rising or falling by the rate specified in the Enforcement Rules or higher or lower based on the latest price as of the time of receipt of the relevant quotation (limited to the price determined by the method of a call auction, and referring to the base price of the day when determining the opening price) during the trading hours of the regular session.
- (5) Matters necessary for the change of trade execution method, etc. under paragraph (4) shall be prescribed by the Enforcement Rules.

§31. Method of Determining Initial Trading Price of Initially Listed Issues, etc.

- (1) The initial price on the trading commencement date for issues specified in the Enforcement Rules including newly listed issues shall be determined by a call auction.
- (2) The range of quotations participating in the determination of price under paragraph (1) shall be determined by the Enforcement Rules.

§32. Good Faith Deposit

- (1) When a member receives an order to buy or sell new-type securities from a customer, the member shall collect the total purchase amount (limited to cash) as a good faith deposit in the case of a purchase, and the entire quantity of the securities to be sold as a good faith deposit in the case of a sale.
- (2) Notwithstanding paragraph (1), a member may not collect the good faith deposit in any of the following cases:
 1. Where, after a selling order of a customer that resolves the outstanding balance is executed, a purchase order within the amount of the relevant selling amount is placed;
 2. Where, for securities of which a purchase order is executed or those that can be confirmed by a member to be electronically registered in the customer account book under Article 22, Paragraph 2 of the Electronic Securities Act by the settlement date, a selling order within the number of the relevant securities is placed; or
 3. Where an order to buy or sell is placed from a customer who intends to make settlement by receiving a margin loan or borrowing securities.

§33. Investor Notice

When a member first receives an order to buy or sell from a customer (including the customer who placed the order to an investment brokerage company, if the member receives the order

from such investment brokerage company), the member shall notify the customer of the market characteristics and investment risks using one (1) of the methods in each subparagraph of [§82(1)] of the Business Regulations and obtain the customer's confirmation of the contents of the notification. Provided that this does not apply if the customer is a professional investor as defined in Article 9, Paragraph 5 of the Capital Markets Act or a person specified in the Enforcement Rules.

Chapter V. Supplementary Provisions

§34. Listing Fees and Annual Dues

(1) An applicant for listing of new-type securities shall pay a listing fee, and a new-type securities listed corporation shall pay annual dues as long as the securities remain listed. Provided that the payment of the listing fee or annual dues may be exempted for the cases deemed necessary by the Exchange.

(2) With respect to the listing fees and annual dues noted in paragraph (1), the rate of listing fee, the methods for calculation and payment, the scope of exemption and other necessary matters shall be prescribed by the Enforcement Rules.

§35. Enforcement Rules

Matters necessary for implementing these Regulations shall be prescribed by the Enforcement Rules.

ADDENDA

(Regulation No. 2358 / September 22, 2025)

§1. Effective Date

This Regulations shall become effective from the date specified in the Enforcement Rules of this Regulations.

§2. Preparatory Actions for Initial Listing

Where the Exchange deems it necessary for the initial listing of new-type of securities, it may receive an application for preliminary listing review and accompanying documents pursuant to [§9(1)] before the enforcement of these Regulations.